

24SMCV05613 24SMCV05613

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-01

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TENTATIVE RULING

Defendant Lloyd Saitman's Demurrer to the Third Amended Complaint is **OVERRULED** as to the first and fifth causes of action. Defendant Lloyd Saitman shall file and serve an answer to Plaintiffs' Third Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)

Plaintiffs Jose De Jesus De Lira Flores and Claudia Maria Magdalena Piedra Fernandez to give notice.

REASONING

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law." (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Mislabeled Cause of Action

As a preliminary matter, Defendant's demurrer is to the first cause of action for negligence and the "sixth" cause of action for premises liability. The TAC contains no sixth cause of action; premises liability is pleaded as the fifth cause of action. Because the substance of the demurrer is clear—Defendant demurs to the negligence claim and the premises liability claim—the Court addresses the demurrer on the merits.

First Cause of Action: General Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

In the first cause of action, Plaintiffs allege Defendant, as the trustee of the Separate Trust, owned, controlled, maintained, and/or managed the Subject Property. (TAC, ¶ 22.) Plaintiffs allege Defendant had a duty to act reasonably and use due care while other vehicles accessed the driveway to enter and exit the Subject Property, and to not subject anyone on the Pacific Coast Highway to an unreasonable risk of harm. (TAC, ¶ 27.) Plaintiffs allege Defendant breached his duty of care despite actual and constructive knowledge of the dangerous propensity of the Subject Property. (TAC, ¶ 28.)

Defendant demurs to these claims on two grounds: (1) Plaintiffs fail to allege facts sufficient to state a cause of action against Defendant, and (2) the first cause of action is uncertain, ambiguous, and unintelligible against Defendant.

A landowner's duty of care encompasses avoiding conditions that expose persons to an unreasonable risk of injury offsite. (*Barnes v. Black* (1999) 71 Cal.App.4th 1473, 1478-1479.) The TAC alleges a dangerous condition on Defendant's property—a narrow, steep driveway with inadequate turnaround space that resulted in vehicles reversing directly onto a high-speed highway. (TAC, ¶ 60.) That the instrumentality causing injury, here the highway and the limousine, lies beyond the landowner's control does not defeat this duty.

In opposition, Plaintiffs cite to *Annocki v. Peterson Enterprises, LLC*, which is instructive. In *Annocki*, a motorcyclist was killed on the Pacific Coast Highway by a vehicle exiting a restaurant's driveway. (*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 34.) The Court of Appeal, reversing an order sustaining a demurrer, held that although the restaurant did not and could not control conditions of the highway, the configuration of the premises allowed restaurant patrons to leave the premises in a manner that was unsafe to themselves, giving rise to a duty. (*Id.*, pp. 38-39.) The court grounded its conclusion in the general rule that a landowner may owe a duty where its property “unleash[es] forces onto public streets,” such that “injury to third persons was foreseeable.” (*Id.*, at p. 38.)

Here, Plaintiffs allege Defendant's property contained a dangerously configured driveway, including lack of turnaround space and a design that required backing directly into high-speed traffic. Under *Annocki*, this is sufficient to establish a duty owed.

Furthermore, Defendant argues the TAC's allegations that the valet attendants warned Defendant Makhshikyan not to back onto the Pacific Coast Highway, and that he ignored them, is a judicial admission that negates duty and proximate cause. (*Dem.*, p. 4; TAC ¶ 26.)

While the determination of whether an act is intervening or superseding presents a question of fact, there still must be sufficient allegations of an act to survive a demurrer. (*Bigbee v. Superior Court* (1979) 93 Cal.App.3d 451, 456.) Here, there are sufficient facts pled that a driver backing unsafely into traffic on the Pacific Coast Highway is the very risk the alleged driveway configuration created. (TAC, ¶ 31.)

Additionally, Plaintiffs' allegations are sufficiently clear to show Plaintiffs seek to hold Defendant liable for negligence. Accordingly, the Defendant's demurrer is overruled as to the first cause of action.

Fifth Cause of Action: Negligence (Premises Liability)

“The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132,

1158, quotation marks omitted.)

The Court incorporates the reasoning laid out above. Furthermore, ownership and control are adequately alleged. Plaintiffs allege the Separate Trust owned and controlled the Subject Property and its points of ingress and egress. (TAC, ¶¶ 10, 56.) The allegations are sufficient for purposes of demurrer. Based on the foregoing, the Court finds the fifth cause of action is sufficiently pled.

Further, Plaintiffs' allegations are sufficiently clear to show Plaintiffs seek to hold Defendant liable for premises liability. Accordingly, the Defendant's demurrer is overruled as to the fifth cause of action.

Conclusion

Defendant Lloyd Saitman's Demurrer to the Third Amended Complaint is OVERRULED as to the first and fifth causes of action. Defendant Lloyd Saitman shall file and serve an answer to Plaintiffs' Third Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)